

CHAPTER 71

Colonial Development and Welfare Act, 1959

ARRANGEMENT OF SECTIONS

Section

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SCHEDULE—Enactments repealed.

An Act to consolidate the Colonial Development and
Welfare Acts, 1940 to 1959. [29th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the Secretary of State may with the concurrence of the Treasury make schemes for any purpose likely to promote the development of the resources of a colony or the welfare of its people. Schemes for colonial development and welfare.

(2) Before making a scheme under this section (hereinafter referred to as "a scheme") as respects a colony, the Secretary of State shall take into account the desirability of securing so far as possible that the colony shall participate in any increase in values directly attributable to the scheme.

2.—(1) Subject to the provisions of this Act, the Secretary of State may with the approval of the Treasury make loans to the government of any colony for enabling that government to provide finance for any of the purposes of a development programme approved by the Secretary of State and by the legislature of the colony. Loans for approved colonial development programmes.

(2) The terms of any such loan shall be such as may be fixed by the Secretary of State with the approval of the Treasury, and different terms may be fixed for portions of the loan issued at different times.

(3) Loans under this section shall be made in accordance with proposals approved by the Secretary of State and the Treasury, and proposals for a loan shall not be approved until provision has been made to the satisfaction of the Secretary of State and the Treasury—

- (a) for securing that moneys representing the amount of the loan will be duly applied for the purpose or purposes in aid of which the loan was made;
- (b) for the repayment of the loan, and the payment of interest thereon, in accordance with the terms of the loan, and for charging the amount of the loan and the interest thereon on the general revenues and assets of the colony and on any other revenues or assets which may be made available for the purpose.

(4) Where there is one government constituted for two or more colonies, or one authority established for two or more colonies for the purpose of providing or administering services which are common to, or relate to matters of common interest to, the colonies, references in this section to the government of a colony shall include references to the government or authority constituted or established as aforesaid, and the colonies may be treated for the purposes of this section either as separate colonies or as a single colony.

(5) In this section “development programme” means a programme of public expenditure for promoting the general development or welfare of the colony in question, whether by the provision of new services or the promotion of new enterprises or by the improvement of existing services or enterprises.

Financing of
schemes and
loans.

3.—(1) Any sums required by the Secretary of State for the purposes of schemes shall be paid out of moneys provided by Parliament, and any sums required by him for the purposes of loans made under the foregoing section shall be issued to him by the Treasury out of the Consolidated Fund.

(2) For providing sums to be so issued, or for the replacement of sums so issued, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939; and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(3) Any sums received by the Secretary of State by way of interest on, or in repayment of, loans made either under the foregoing section or in pursuance of schemes shall be paid into the Exchequer.

(4) Sums paid into the Exchequer under the foregoing subsection in respect of loans made under the foregoing section shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury as follows, that is to say—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit, and
- (b) so much thereof as represents interest shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

4.—(1) Sums to be paid out of moneys provided by Parliament for the purposes of schemes (excluding sums so paid before the first day of April, nineteen hundred and forty-six) shall not exceed three hundred and fifteen million pounds in all. Financial and time limits for schemes and loans.

(2) No scheme, other than a scheme for promoting research or enquiry, shall continue in force after the thirty-first day of March, nineteen hundred and sixty-four:

Provided that this subsection shall not prevent the continuance in force of any scheme in so far as the scheme makes provision for the payment out of moneys provided by Parliament of pensions, allowances or other benefits in respect of injuries or diseases, or aggravation of diseases, incurred by persons engaged in activities carried on for the purposes of schemes.

(3) Proposals shall not be approved so that the aggregate amount of loans under section two of this Act provided for by the proposals exceeds twenty-five million pounds as respects the proposals approved in any financial year or one hundred million pounds in all, no proposals for loans under that section shall be approved after the thirty-first day of March, nineteen hundred and sixty-four, and no moneys shall be lent under that section after the thirty-first day of March, nineteen hundred and sixty-seven.

5. The Secretary of State shall not make a scheme which provides for the payment of the whole or part of the cost of the execution of any works, or approve a proposal for a loan under section two of this Act where a purpose in aid of which the loan is proposed involves the execution of any works, if (except in the case of the Aden Protectorate) he is not satisfied that the law of the colony provides reasonable facilities for the establishment and activities of trade unions or if (in any case) he is not satisfied that fair conditions of labour will be observed in the execution of the works and in particular— Requirements as to labour conditions in colony.

- (a) that the wages paid will be at not less than the rates recognised by employers and trade unions in the area where the works are to be executed or, if there are no rates so recognised, at rates approved by the appropriate authority of the colony; and

- (b) that no children under such age as may be appropriate in the circumstances, but not in any case being less than fourteen years, will be employed on the works.

Schemes
relating to
territories
which cease to
be colonies.

6.—(1) A scheme which was made solely for the benefit of any colony shall, if the colony at any time ceases to be a colony, cease to have effect at that time, without prejudice to the making of payments in pursuance of the scheme after that time in respect of any period falling before that time; and so far as practicable, but subject to the provisions of the following subsection, no part of any sums paid out of moneys provided by Parliament for the purposes of any other scheme made before that time shall be employed in respect of any period falling after that time for the benefit of the colony.

(2) Notwithstanding that a colony ceases at any time to be a colony, a scheme may be made after that time with respect to a body established for the joint benefit of the former colony and any other colony and sums paid out of moneys provided by Parliament may be employed for the purposes of such a scheme made before that time if (in either case) the government of the former colony has undertaken to bear a reasonable share of the cost of the scheme.

Tanganyika
Agricultural
Corporation

7.—(1) No payment shall be made by the Secretary of State in pursuance of a scheme for the purpose of providing funds required by the Tanganyika Agricultural Corporation for carrying on the undertaking of the Overseas Food Corporation.

(2) For the purposes of subsection (1) of section four of this Act there shall be left out of account any sums required by the Secretary of State in the period ending on the first day of October, nineteen hundred and fifty-seven, for making payments pursuant to any scheme for the purpose mentioned in the foregoing subsection.

(3) In this section "the Tanganyika Agricultural Corporation" means the Corporation constituted under that name by an Ordinance of the Legislature of Tanganyika dated the first day of June, nineteen hundred and fifty-four, and known as the Tanganyika Agricultural Corporation Ordinance, 1954; and the reference in this section to the undertaking of the Overseas Food Corporation is a reference to the undertaking transferred to the Tanganyika Agricultural Corporation by section one of the Overseas Resources Development Act, 1954.

Accounts and
returns.

8.—(1) As respects each financial year the Secretary of State shall prepare in such form and manner as the Treasury may direct an account of sums issued to him for the purposes of loans made under section two of this Act and of sums received by him by way

of interest on, or in repayment of, such loans, and of the disposal by him of those sums respectively, and send it to the Comptroller and Auditor General not later than the end of the November following the year; and the Comptroller and Auditor General shall examine, certify and report on the account and lay copies of it together with his report before each House of Parliament.

(2) As soon as may be after the end of each financial year, the Secretary of State shall lay before each House of Parliament—

- (a) particulars of the schemes made by him during that financial year, and
- (b) a statement of the loans under section two of this Act for which he has approved proposals during that financial year, together with particulars of the development programmes to which they relate.

9. In this Act “colony” means a colony or other territory outside the United Kingdom for the international relations of which Her Majesty’s Government in the United Kingdom are responsible, and includes the New Hebrides. Meaning of
“colony”.

10.—(1) The enactments specified in the first and second columns of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeal and
savings.

(2) In so far as any scheme made, proposal approved or other thing done under an enactment repealed by this Act could have been made, approved or done under a corresponding provision of this Act, it shall not be invalidated by the repeal effected by the foregoing subsection but shall have effect as if it had been made, approved or done under that corresponding provision.

(3) Without prejudice to the generality of the foregoing subsection, this Act shall apply in relation to schemes made under section one of the Colonial Development and Welfare Act, 1940 as it applies in relation to schemes made under section one of this Act.

(4) Except where the context otherwise requires, a reference in any document to an enactment repealed by this Act shall be taken to be or, as the case may require, to include a reference to the corresponding enactment in this Act.

(5) Without prejudice to the operation of paragraph (c) of the proviso to subsection (1) of section two of the Federation of Malaya Independence Act, 1957, this Act, except in so far as it re-enacts the Colonial Development and Welfare (Amendment) Act, 1959, shall be treated for the purposes of the said section two as if passed before the appointed day as defined in the said Act of 1957.

(6) Notwithstanding the provisions of subsection (1) of this section, payments required to be made after the repeal of section one of the Colonial Development Act, 1929, in respect of advances agreed to be made thereunder before the commencement of the Colonial Development and Welfare Act, 1940, shall continue to be treated as if they had been required to be made in pursuance of a scheme, and the Treasury shall continue to be under a duty to pay into the Exchequer any sums received by them by way of interest on, or in repayment of, any advance made by way of loan under the said section one.

(7) The mention of particular matters in this section shall be without prejudice to the general application of subsection (2) of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

Short title.

11. This Act may be cited as the Colonial Development and Welfare Act, 1959.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Geo. 6. c. 40.	The Colonial Development and Welfare Act, 1940.	The whole Act.
8 & 9 Geo. 6. c. 20.	The Colonial Development and Welfare Act, 1945.	The whole Act.
3 & 4 Eliz. 2. c. 6.	The Colonial Development and Welfare Act, 1955.	The whole Act.
5 & 6 Eliz. 2. c. 54.	The Tanganyika Agricultural Corporation Act, 1957.	In section one, subsection (2).
7 & 8 Eliz. 2. c. 29.	The Colonial Development and Welfare (Amendment) Act, 1959.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Colonial Development Act, 1929	20 & 21 Geo. 5. c. 5.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Colonial Development and Welfare Act, 1940 ...	3 & 4 Geo. 6. c. 40.
Overseas Resources Development Act, 1954 ...	2 & 3 Eliz. 2. c. 71.
Federation of Malaya Independence Act, 1957 ...	5 & 6 Eliz. 2. c. 60.
Colonial Development and Welfare (Amendment) Act, 1959	7 & 8 Eliz. 2. c. 29.